

NINTH SCHEDULE

[Articles 74, 77]

*Legislative Lists**List I—Federal List*

1. External affairs, including—
 - (a) treaties, agreements and conventions with other countries and all matters which bring the Federation into relations with any other country;
 - (b) implementation of treaties, agreements and conventions with other countries;
 - (c) diplomatic, consular and trade representation;
 - (d) international organizations; participation in international bodies and implementation of decisions taken thereat;
 - (e) extradition; fugitive offenders; admission into, and emigration and expulsion from, the Federation;
 - (f) passports; visas; permits of entry or other certificates; quarantine;
 - (g) foreign and extra-territorial jurisdiction; and
 - (h) pilgrimages to places outside Malaysia.
2. Defence of the Federation or any part thereof, including—
 - (a) naval, military and air forces and other armed forces;
 - (b) any armed forces attached to or operating with any of the armed forces of the Federation; visiting forces;
 - (c) defence works; military and protected areas; naval, military and air force bases; barracks, aerodromes and other works;
 - (d) manoeuvres;
 - (e) war and peace; alien enemies and enemy aliens; enemy property; trading with an enemy; war damage; war risk insurance;
 - (f) arms, fire-arms, ammunition and explosives;
 - (g) national service; and
 - (h) civil defence.
3. Internal security, including—
 - (a) police; criminal investigation; registration of criminals; public order;
 - (b) prisons; reformatories; remand homes; places of detention; probation of offenders; juvenile offenders;
 - (c) preventive detention; restriction of residence;
 - (d) intelligence services; and
 - (e) national registration.

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List I

See Art. 74(1), 76A(1), 79(1), 95B(1) & (3).

Item 1(h)

The word “Malaysia” substituted for the word “Malaya” by Act 26/1963, section 70, in force from 16-09-1963.

4. Civil and criminal law and procedure and the administration of justice, including—

- (a) constitution and organization of all courts other than Syariah Courts;
- (b) jurisdiction and powers of all such courts;
- (c) remuneration and other privileges of the judges and officers presiding over such courts;
- (d) persons entitled to practise before such courts;
- (e) subject to paragraph (ii), the following:
 - (i) contract; partnership, agency and other special contracts; master and servant; inns and inn-keepers; actionable wrongs; property and its transfer and hypothecation, except land; *bona vacantia*; equity and trusts; marriage, divorce and legitimacy; married women's property and status; interpretation of federal law; negotiable instruments; statutory declarations; arbitration; mercantile law; registration of businesses and business names; age of majority; infants and minors; adoption; succession, testate and intestate; probate and letters of administration; bankruptcy and insolvency; oaths and affirmations; limitation; reciprocal enforcement of judgments and orders; the law of evidence;
 - (ii) the matters mentioned in paragraph (i) do not include Islamic personal law relating to marriage, divorce, guardianship, maintenance, adoption, legitimacy, family law, gifts or succession, testate and intestate;
- (f) official secrets; corrupt practices;
- (g) use or exhibition of coats of arms, armorial bearings, flags, emblems, uniforms, orders and decorations other than those of a State;
- (h) creation of offences in respect of any of the matters included in the Federal List or dealt with by federal law;
- (i) indemnity in respect of any of the matters in the Federal List or dealt with by federal law;
- (j) admiralty jurisdiction;
- (k) ascertainment of Islamic law and other personal laws for purposes of federal law; and
- (l) betting and lotteries.

5. Federal citizenship and naturalization; aliens.

6. The machinery of government, subject to the State List, but including—

- (a) elections to both Houses of Parliament and the Legislative Assemblies of the States and all matters connected therewith;
- (b) the Armed Forces Council and the Commissions to which Part X applies;
- (c) federal services including the establishment of services common to the Federation and the States; services common to two or more States;

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Item 4(a)

The words “Syariah Courts” substituted for the words “Muslim Courts” by Act A354, section 45, in force from 27-08-1976.

Item 4(e)(ii)

1. The word “legitimacy” was inserted by Act 31/1965, subsection 2(2), in force from 01-07-1965.
2. The word “Islamic” substituted for the word “Muslim” by Act A354, section 44, in force from 27-08-1976.

Item 4(h) & (i)

The words “or dealt with by federal law” which appear at the end were inserted by Act 25/1963, paragraph 6(1)(a), in force from 29-08-1963.

Item 4(k)

1. The words “and other personal laws” were inserted by Act 26/1963, section 70, in force from 16-09-1963.
2. The words “Islamic law” substituted for the words “Muslim law” by Act A354, section 45, in force from 27-08-1976.

- (d) pensions and compensation for loss of office; gratuities and conditions of service;
- (e) Government and administration of the Federal Territories of Kuala Lumpur, Labuan and Putrajaya including Islamic law therein to the same extent as provided in item 1 in the State List and in respect of the Federal Territory of Labuan, native law and custom to the same extent as provided in item 13 of the Supplement to State List for States of Sabah and Sarawak;
- (f) federal Government contracts;
- (g) federal public authorities; and
- (h) purchase, acquisition and holding of, and dealing with, property for federal purposes.

7. Finance, including—

- (a) currency, legal tender and coinage;
- (b) national savings and savings banks;
- (c) borrowing on the security of the Federal Consolidated Fund;
- (d) loans to or borrowing by the States, public authorities and private enterprise;
- (e) public debt of the Federation;
- (f) financial and accounting procedure, including procedure for the collection, custody and payment of the public moneys of the Federation and of the States, and the purchase, custody and disposal of public property other than land of the Federation and of the States;
- (g) audit and accounts of the Federation and the States and other public authorities;
- (h) taxes; rates in the federal capital;
- (i) fees in respect of any of the matters in the Federal List or dealt with by federal law;
- (j) banking; money-lending; pawnbrokers; control of credit;
- (k) bills of exchange, cheques, promissory notes and other similar instruments;
- (l) foreign exchange; and
- (m) capital issues; stock and commodity exchanges.

8. Trade, commerce and industry, including—

- (a) production, supply and distribution of goods; price control and food control; adulteration of foodstuffs and other goods;
- (b) imports into, and exports from, the Federation;
- (c) incorporation, regulation and winding up of corporations other than municipal corporations (but including the municipal corporation of the federal capital); regulation of foreign corporations; bounties on production in or export from the Federation;

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Item 6(e)

1. The original paragraph read as follows:

“(e) Local Government and town planning in, and water supply to the federal capital;”.

2. Act A206, section 11, in force from 01-02-1974 substituted the original paragraph for the following:

“(e) Government and administration of the Federal Territory including Islamic Law therein to the same extent as provided in item 1 in the State List.”.

3. Subsequently this paragraph was substituted by Act A585, section 20, in force from 16-04-1984.
4. This paragraph was again amended by Act A1095, subparagraph 20(a)(i), in force from 01-02-2001 by substituting the words “Kuala Lumpur, Labuan and Putrajaya” for the words “Kuala Lumpur and Labuan”.

Items 7(f) & (g): See Art. 108(4)(f).

Item 7(i)

The words “or dealt with by federal law” were inserted by Act 25/1963, paragraph 6(1)(a), in force from 29-08-1963.

Item 8(c)

The words “bounties on production” in the last subject substituted for the words “bounties and production” by Act 25/1963, subsection 6(2), in force from 29-08-1963.

Item 8(j)

The words “Subject to item 2(c) in the State List” at the commencement were inserted by Act 26/1963, section 70, in force from 16-09-1963.

- (d) insurance, including compulsory insurance;
- (e) patents; designs, inventions; trade marks and mercantile marks; copyrights;
- (f) establishment of standards of weights and measures;
- (g) establishment of standards of quality of goods manufactured in or exported from the Federation;
- (h) auctions and auctioneers;
- (i) industries; regulation of industrial undertakings;
- (j) subject to item 2(c) in the State List: Development of mineral resources; mines, mining, minerals and mineral ores; oils and oilfields; purchase, sale, import and export of minerals and mineral ores; petroleum products; regulation of labour and safety in mines and oilfields;
- (k) factories; boilers and machinery; dangerous trades; and
- (l) dangerous and inflammable substances.

9. Shipping, navigation and fisheries, including—

- (a) shipping and navigation on the high seas and in tidal and inland waters;
- (b) ports and harbours; foreshores;
- (c) lighthouses and other provisions for the safety of navigation;
- (d) maritime and estuarine fishing and fisheries, excluding turtles;
- (e) light dues; and
- (f) wrecks and salvage.

10. Communications and transport, including—

- (a) roads, bridges, ferries and other means of communication if declared to be federal by or under federal law;
- (b) railways, excluding Penang Hill Railway;
- (c) airways, aircraft and air navigation; civil aerodromes; provisions for the safety of aircraft;
- (d) regulation of traffic by land, water and air other than on rivers outside harbour areas wholly within one State;
- (e) carriage of passengers and goods by land, water and air;
- (f) mechanically propelled vehicles;
- (g) posts and telecommunications; and
- (h) wireless, broadcasting and television.

11. Federal works and power, including—

- (a) public works for federal purposes;
- (b) water supplies, rivers and canals, except those wholly within one State or regulated by an agreement between all the States concerned; production, distribution and supply of water power; and

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Item 11(b)

The words “Water supplies, rivers and canals, except those wholly within one State or” at the commencement substituted for the words “Inter-State water supplies and rivers and canals so far as not” by Act 26/1963, section 70, in force from 16-09-1963.

Item 12

The words “Islamic law” substituted for the words “Muslim law” by Act A354, section 45, in force from 27-08-1976.

Item 14: See List IIIA, item 18.

- (c) electricity; gas and gas works; and other works for the production and distribution of power and energy.
12. Surveys, inquiries and research, including—
- (a) census; registration of births and deaths; registration of marriages; registration of adoptions other than adoptions under Islamic law or Malay custom;
 - (b) survey of the Federation; social, economic and scientific surveys; meteorological organizations;
 - (c) scientific and technical research; and
 - (d) commissions of inquiry.
13. Education, including—
- (a) elementary, secondary, and university education; vocational and technical education; training of teachers; registration and control of teachers, managers and schools; promotion of special studies and research; scientific and literary societies;
 - (b) libraries; museums; ancient and historical monuments and records; archaeological sites and remains.
14. Medicine and health including sanitation in the federal capital, and including—
- (a) hospitals, clinics and dispensaries; medical profession; maternity and child welfare; lepers and leper institutions;
 - (b) lunacy and mental deficiency, including places for reception and treatment;
 - (c) poisons and dangerous drugs; and
 - (d) intoxicating drugs and liquors; manufacture and sale of drugs.
15. Labour and social security, including—
- (a) trade unions; industrial and labour disputes; welfare of labour including housing of labourers by employers; employer's liability and workmen's compensation;
 - (b) unemployment insurance; health insurance; widows', orphans' and old age pensions; maternity benefits; provident and benevolent funds; superannuation; and
 - (c) charities and charitable institutions; charitable trusts and trustees excluding Wakafs; Hindu endowments.
16. Welfare of the aborigines.
17. Professional occupations other than those specifically enumerated.
18. Holidays other than State holidays; standard of time.

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Item 15(c)

The word “Wakafs” substituted for the words “Muslim Wakafs” by Act A354, section 45, in force from 27-08-1976.

Item 24

This Item which read as follows was deleted by Act A704, paragraph 12(a), in force from 10-06-1988:

“24. Federal housing and improvement trusts.”.

Item 25A: Inserted by Act A885, section 45, in force from 24-06-1994.

Item 26

1. Inserted by Act A354, paragraph 48(1)(a), in force from 01-01-1976.
2. The word “Subject” substituted for the words “Except with respect to Sabah and Sarawak, and subject” by Act A514, paragraph 17(a), in force from 15-05-1981.

Item 27

1. Inserted by Act A566, section 22, in force from 01-02-1974.
2. The words “and in the case of the Federal Territory of Labuan, the matters enumerated in items 15, 16 and 17 of the Supplement to State List for States of Sabah and Sarawak” were inserted after the word “List” by Act A585, section 20, in force from 16-04-1984.
3. Subsequently the words “to the Federal Territories” substituted for the words “to the Federal Territory” by Act A1095, subparagraph 20(a)(ii), in force from 01-02-2001.